

(3) In the case of any difference of opinion between the railway administration and the State Government or the local authority, as the case may be, over any of the matters mentioned in sub-section (1), it shall be referred to the Central Government. Whose decision thereon shall be final.

Comments

Section 19 provides for construction of over bridges and under bridges at a level crossing at the instance of the State Government or the local authority in the interest of the public safety.

Public Safety – There is no need to strictly construe the words “public safety” laid down in section.19 of the Indian Railways Act. A Level crossing is to be manned twenty-four hours by railway employee on duty at the gate. It has been submitted that since the railway administration has met fifty percent of the expenditure on the flyover it would be in the interest of public exchequer to so construct the flyover as to totally avoid placement on duty for twenty four hours of railway employees at the level crossing. It is with this view that sub-way is being provided and is being constructed and a wall is being constructed on both sides of the subway so as to prevent flow of traffic over the railway line and to obviate the need of level crossing gate on the railway line.

20. Power of Central Government to give directions for safety – Notwithstanding anything contained in any other law the Central Government may, if it is of the opinion that any work undertaken or may be undertaken, is likely to alter or impede the natural course of water flow or cause an increase in the volume of such flow endangering any cutting, embankment or other work on a railway, issue directions in writing to any person, officer or authority responsible for such work to close, regulate or prohibit that work.

CHAPTER V

Opening Of Railways

21. **Sanction of the Central Government to the opening of railway**
– No railway shall be opened for the public carriage of passengers until the government has, by order, sanctioned the opening thereof for the purpose.

Comments

Section 21 lays down that no railway shall be opened for the public carriage of passengers until the Central Government has sanctioned the opening thereof.